

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 10, 2019

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Ken Esquibel and Mike Luna. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Case, and pursuant to support received by two other members, Agenda Item #20 (a) was removed from the Consent Agenda. Upon request by Mr. Case, and pursuant to support received by two other members, Agenda Item #21 (b) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining Consent Agenda items, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on May 28, 2019. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on June 5, 2019. Motion (per Consent Agenda) carried.

Mr. Roybal moved to approve payment of vouchers as presented, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Rinne voting “no”.

Mayor Orr opened a public hearing for a proposed sale of undeveloped public property described as a portion, consisting of approximately 1.46 acres, of Lot 2, Block 1, Pat Griffin Park, containing 5.5 acres, more or less, City of Cheyenne, Laramie County, Wyoming, with an appraised value of \$111,000.00, to Moreland Properties, LLD. Brendan Ames, Chief Economic Development Officer, provided a staff report on the property noting the economic importance of developing the land for the west corridor of the City. He advised the property is currently vacant and blighted, the land will be used as a large car dealership and the interested purchaser understands the importance of the Crow Creek Revival (CCR) Project near the property. Concern was expressed related to how the sale and development of the property may impact the CCR Project. Mr. Ames explained there isn't a site plan or total configuration of the proposed business yet, and the potential owner can collaborate with the CCR Committee. Jeff Geyer, Laramie County Conservation District, presented a map of the CCR Project, provided information on Committee

composition which is made of agencies and members of the public and advised the committee has been developing a master plan and implementation for 2020. Mr. Geyer advised the CCR Committee is in support of the land acquisition and it's private/public partnership and is looking forward to working with adjacent Crow Creek property owners. They requested the City to maintain ownership of the 20' swath of land paralleling the Crow Creek floodway (1,300 linear sq. ft.) on top of the floodway terrace to be used as a Greenway trail for the following reasons: Greenway vision for the area has been in the masterplan for the area since 1992, ideal flat topography and location for a trail, customer exposure for the new proposed business, great trail overview as opposed to placement in the floodway corridor and the suggested placement would be less likely to sustain damage from peak storm runoff events. Mr. Geyer explained the project requires land outside of floodway to be included in the excavated area and requested to maintain public access for parking (enough for a school bus to maneuver) and foot and bike traffic as it is important for the project. He noted the CCR Committee would like to be able to provide input during the early planning process. Comments were made related to timing of the CCR Project and when it was brought before City Council, development of the land and the importance of Crow Creek revitalization and development of the land. Nancy Loomis, project leader for the Community Wildlife Habitat Project for the West Edge district, provided information on the project, goals and project areas. She explained 4 City properties have been certified through the National Wildlife Federation as wildlife habitats and the property being discussed isn't included in the Community Wildlife Habitat Project area but has direct impact downstream and requested the developer to work with Laramie County Conservation District and the CCR Committee. Tom Annear, spoke in support of the project and suggested coordination between involved parties. Brent Lathrop, South East Wyoming Director for the Nature Conservancy, commented on livable cities, spoke in support of the CCR Project and requested a deliberate property agreement and sale. Further comments were made related to Pat Griffin Park history and Mr. Griffin's intent to develop the land, donating property purchase price dollars to Greenway path construction and the importance of the CCR Project. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing.

Mayor Orr opened a public hearing for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2020. There being no comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing.

ORDINANCE – 3rd READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Roybal. Board of Public Utilities (BOPU) City Council representative Mr. Laybourn provided information on the proposed increases and explained BOPU is diligently looking at future resource needs as the community grows. Motion carried. Voting “yes” – all members of the governing body present. (#4272)

ORDINANCE – 3rd READING – Appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said

appropriation, all for the Fiscal Year beginning July 1, 2019 and ending June 30, 2020. Molly Bennett, Cheyenne Public Employees Association (CPEA), requested removing the cap on employees and provided information on the importance of not capping the number of full-time employees stating it is essential to continue to provide services as the City grows. Ms. Bennett requested support of the governing body to allow Department Directors the ability to efficiently determine how to staff their departments to provide department and public service functions. Robin Lockman, City Treasurer, confirmed an email sent during the week of June 3rd correctly reflected the current number of employees at that time was 562. Mayor Orr advised the City is obligated to hold military employee full time positions while on deployments. Darrin Hass, Human Resources Director, reported an additional full-time employee has been hired increasing the employee number to 563(including deployed full-time employees) and advised currently there are 12 open positions. Ms. Lockman explained 5 of the open positions are funded through the General Fund and the others are from other funding sources and the number does not include 3 proposed new positions for FY 2020. JJ Chen, expressed appreciation to City employees and spoke in support of the Downtown Development Authority (DDA). Reporting for Committee of the Whole, Mr. Case moved to approve on third and final reading, seconded by Mr. Roybal. Mr. Shanor moved to amend by substitute dated 6/10/19, seconded by Dr. Rinne. Mr. Shanor advised the amendment incorporates footnotes as recommended at the 06-05-19 Committee of the Whole meeting into line items and provides for clarification of intended footnotes. Mayor Orr clarified the proposed substitute dated 06/10/19 does not include a previously approved hiring freeze and further clarified proposed footnotes. Motion to amend carried. Voting “yes” – all members of the governing body present. Mr. Shanor moved to amend by adding Footnote #3 that adds \$100,000.00 to reserves from FY 2019 reversions, seconded by Mr. Cook. Motion to amend carried. Voting “yes” – all members of the governing body present. Mr. White moved to amend Footnote #2 to change the employee cap number to 580.1, seconded by Dr. Rinne. Mr. White explained this is an effort to give staff a little more flexibility for adjusting department staffing levels. Motion to amend carried. Voting “yes” – all members of the governing body present. Mr. Laybourn moved to amend the Economic/Community Development line item by moving \$30,000.00 from the DDA to the Police Department budget for the Downtown Operation Change Patrol Program, seconded by Mr. Cook. Mr. Laybourn spoke in support of and provided information on the program. Captain Nathan Buseck, Police Department, provided information on the previous success and focus of the Downtown Operation Change Patrol Program which included providing the homeless/transient population with tools to improve their current living situations. Captain Buseck explained the program was previously funded through grants which are no longer available, noting the program is not currently budgeted for in FY 2020, and reported when there is a police officer presence downtown, there is less crime in the area. Vicki Duggar, DDA Director, advised upon inquiry, the proposed DDA funding from the City will require further DDA Board action due to a proposed reduction in the funding total. Comments were made on the importance of the downtown patrol program and the proposed budget of the DDA including staff salaries. Captain Buseck provided information on the graffiti abatement program and budget line item upon inquiry. Ms. Lockman provided further information on graffiti abatement program funding line item and available balance. Comments were made in support of continued funding for the graffiti abatement program. Motion to amend failed. Voting “no” – all members of the governing body present with the exception of Mr. Laybourn voting “yes”. Mr. Laybourn moved to amend by moving \$10,344.00 from the General Fund reserves revenue category and adding it

to the Police Department budget for the Downtown Operation Change Patrol Program, seconded by Mr. Cook. Captain Buseck requested caution regarding removing all funding for the graffiti abatement program as it is still needed for that purpose. Upon inquiry, Ms. Lockman provided information on funds expended from the graffiti abatement line item over the last 3 years. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended four times carried. Voting “yes” – all members of the governing body present. The following is a summary of the proposed budget, including the aforementioned amendments: General Fund, \$56,073,809; Weed and Pest, \$515,683; Youth Alternatives Grants, \$574,762; Development Impact Fees, \$151,200; Recreation Programs, \$1,337,339; Community Development Block Grant, \$506,474; Law Enforcement Grants, \$171,032; Transportation Planning, \$870,097; FTA Transit Grant, \$2,432,324; Juvenile Justice, \$80,409; Special Friends, \$76,363; Specific Purpose Option Tax, \$325,158; One Percent Sales Tax 2019-22, \$10,899,926; Youth Activities/Ropes, \$18,000; Golf Facilities, \$201,000; Fleet Maintenance, \$4,322,249; Solid Waste Management, \$18,015,303; Civic Center, \$2,348,249; Ice & Events Center, \$685,503; Perpetual Care, \$2,000; Total City, \$99,606,880; Water Enterprise, \$30,186,375; Sewer Enterprise, \$17,348,745; Total Appropriation, \$147,142,000. (#4273)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District, of the Unified Development Code, changing the zoning classification from CB Community Business and County A-1 Agricultural and Rural Residential to Harmony Valley Planned Unit Development for portions of the S1/2 of Section 7 and the S1/2 of the NE1/4 of Section 7, Township 13 North, Range 66 West, of the 6th P.M., City of Cheyenne Laramie County, Wyoming (as described in Exhibit A and generally located northeast of the intersection of West College Drive and Parsley Boulevard. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Roybal. Dr. Rinne moved to amend by substitute for Exhibit B dated June 4, 2019, seconded by Mr. Roybal. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#4274)

ORDINANCE – 2nd READING – Defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne for fiscal year 2019-2020. Mr. White moved to approve on second reading, seconded by Mr. Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Defining the terms and conditions of employment for sworn officers of the Police Department for fiscal year 2019-2020. Mr. White moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Mr. White moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 1st READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (“UDC”), replacing UDC Section 5.8.1 in response to the rapidly changing technology and regulatory environment for wireless communication facilities, including the deployment of new, smaller wireless communication facilities – referred to Public Services Committee. (Sponsor – Mr. Shanor)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Christensen Park, situated in a portion of the SW¼ NE¼, Section 36, Township 14 North, Range 67 West of the Sixth Principal Meridian, Cheyenne, Laramie County, Wyoming (located at the southwest corner of Talbot Court and Cribbon Avenue) (Postponed from 05-28-19). Dr. Rinne moved to adopt, seconded by Mr. Case. Dr. Rinne moved to postpone to 06-24-2019, seconded by Mr. Case. Dr. Rinne advised the land title which was originally transferred in the 1950’s contains inaccuracies and updates are required. Motion to postpone carried. Voting “yes” – all members of the governing body present.

[CA] RESOLUTION – Reappropriating the Fiscal Year 2019 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & §16-4-113. Motion (per Consent Agenda) carried. (#5996)

RESOLUTION – Authorizing the expansion of the Capitol North Historic District and the addition of one hundred seventeen (117) structures to the Contributing Structures List maintained by the City’s Planning Office. Dr. Rinne moved to adopt, seconded by Mr. Shanor. Dr. Rinne moved to amend the 3 references of the number of structures from 117 to 119, seconded by Mr. Shanor. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#5997)

[CA] RESOLUTION – Amending Resolution No. 5934 pertaining to adoption of a revised Cheyenne-Laramie County Board of Health Fee Schedule for inspection services, permit fees and other various services – referred to Finance Committee. (Sponsor – Mr. White)

Cable Franchise Agreement between the City of Cheyenne, Wyoming, and Spectrum Pacific West, LLC I/k/a Charter Communications (Postponed from 05-28-2019). Ben Rowland, Davis & Cannon, LLP, reported a revised final franchise agreement has been agreed upon by the associated parties and requested approval. Mr. Rowland expressed appreciation for assistance by each party involved in reaching the final agreement. Upon inquiry, Mr. Rowland provided information on the return line from City hall to Charter “head end” which is how they provide the public access channel, noting an agreement has been reached related to details of the return line and that a mandatory mediation process may occur if parties can’t reach an agreement when the agreement expires in the future. Regarding the customer service center, Mr. Rowland advised there is a brick and mortar customer service center in Cheyenne and current language provides for a local customer service center within the franchise area of Cheyenne city limits. Erik Rasmussen, Charter Communications, reported parties have come to an agreement on two outstanding issues and requested approval of the proposed revised franchise agreement. Mr. White moved to approve, seconded by Mr. Case. Mr. Case moved to amend by substitute dated 06-10-19, seconded by Dr.

Rinne. Mr. Rowland clarified the customer service area is outlined within the substitute agreement. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#7012)

[CA] Industrial and Economic Development Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (LEADS) (General fund). Motion (per Consent Agenda) carried (amount not to exceed \$49,825.00). (#7013)

[CA] Purchase and Sale Agreement between the City of Cheyenne and Moreland Properties, LLC, Englewood, CO, for the sale of undeveloped public property described as a portion, consisting of approximately 1.46 acres, of Lot 2, Block 1, Pat Griffin Park, containing 5.5 acres, more or less, City of Cheyenne, Laramie County, Wyoming, for the appraised value of \$111,000.00 – referred to Finance Committee.

[CA] Telecommunications right of way license and use agreement between the City of Cheyenne and Zayo Group, LLC, Boulder, CO – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and Johnson County, Johnson County Sheriff’s Office, Wyoming, for law enforcement extraterritorial assistance – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and the City of Torrington, Torrington Police Department, for law enforcement extraterritorial assistance – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for the use of the Cheyenne Civic Center for the Youth Education Concerts (Economic Support funds) – referred to Finance Committee.

Contract Modification #2 to Contract No. 6660 between the City of Cheyenne and WYCO Recycling LLC, Cheyenne, to change the business name. Vicki Nemecek, Public Works Director, advised the contractor has requested a postponement, noting staff supports the request. Mr. White moved to approve, seconded by Mr. Shanor. Mr. White moved to postpone to 06-24-2019, seconded by Mr. Case. Motion to postpone carried. Voting “yes” – all members of the governing body present.

Contract Modification #1 to Professional Services Agreement #6785 for the Christensen Railroad Overpass Corridor Project (Specific Purpose Sales Tax). Wes Bay, Deputy City Engineer, provided an overview of what the modification entails. Mr. Bay, upon inquiry, provided information relating to the history of the project design, primarily involving the design specific modifications to the intersection of Christensen and Pershing Blvd. He explained existing grades in the location of the previously proposed roundabout intersection are not conducive for construction of a roundabout, noting a 4-lane signalized intersection is currently be considered for that location. Mr. Bay further reported on national design standards involving various intersection designs. Council President Mr. Case provided information relating to the intersection design plans

dating back to February 2014 which includes ordinances approved by the governing body and associated design mapping relating to the project, noting public input for design modifications should be considered. Upon inquiry, Logan Sharpe, Assistant City Attorney, confirmed the design map approved in relation to Ordinance #3279 (03-25-1996) is the most recent map approved by the governing body. Mr. Sharpe further reported Ordinance #3279 does not require construction of a roundabout intersection and advised he will provide additional information relating to ability to construct a skewed intersection upon further review. Comments were made relating to original project design, public input, project expectations and concerns with recent accidents within and around skewed intersections. Mr. Bay provided additional information involving design options and evaluations and research, noting the proposed intersection would function much like the intersection of Pershing Blvd. and US Highway 30, noting additional review of a signalized skewed intersection is being considered. Mr. Bay explained use of force account funding, noting the force account is to cover issues that may arise to keep the project on track. Discussion and comments were made regarding intersection design, public input on design modifications, force account funding and construction management. Mr. Bay confirmed the project design is not complete and a public forum involving proposed changes can be arranged. Mr. White moved in an amount not to exceed \$710,983.20, seconded by Mr. Roybal. Mr. Bay, upon inquiry, advised the proposed modification funding would come from current project funding (2012 6th Penny). Mayor Orr advised the project is currently below the \$15 million budget. Mr. Case moved to postpone to 06-24-19, seconded by Mr. Cook. Mr. Sharpe confirmed he will provide the governing body with clarification on questions pertaining to previously approved project related ordinances, associated design mapping and traffic study report. Motion to postpone carried. Voting “yes” – all members of the governing body present with the exception of Mayor Orr and Dr. Rinne voting “no”.

[CA] Consideration of Bid #E-21-19 for furnishing new computers and operating systems for the City of Cheyenne, Information Technology Division (2015 – 2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Dell Technologies, Round Rock, TX, in an amount not to exceed \$39,259.08).

[CA] Consideration of Bid #S-17-19 for a contract between the City of Cheyenne, and Ameri-Tech HVAC Services, Cheyenne, for the HVAC and Mechanical Systems Maintenance Project (Civic Center, Fleet Maintenance, General Fund, Ice & Events, and Solid Waste funds) – referred to Finance Committee.

[CA] Consideration of Bid #E-28-19 for furnishing two (2) new 2019-2020 15 passenger vans for the City of Cheyenne, Recreation Division (Reserves carryover) – referred to Finance Committee.

[CA] Consideration of Bid #E-14-19 for furnishing one (1) new four-door Utility Police Interceptor (staff vehicle) for Cheyenne Fire & Rescue (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-33-19 for furnishing 95 gallon and 65 gallon automated refuse carts for the City of Cheyenne, Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-34-19 for furnishing 1 ½ cubic yard capacity steel Sanitation refuse containers with covers for the City of Cheyenne, Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Application for a winery liquor license application filed with the City Clerk's Office for GrapesNwine, LLC d/b/a Vintages, 309 North American Rd., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:49 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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